TENTATIVE RULINGS

DEPARTMENT N17

Judge Craig L. Griffin

Date: June 29, 2026
Time: 2:00 PM

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1	CardFlex, Inc. vs. ABN Network, LLC	Plaintiff Cardflex, Inc. d/b/a Cliq's ("Plaintiff") unopposed Motion to Enforce Settlement Agreement ("Motion") is **DENIED without prejudice**. Plaintiff moves the court for entry of judgment based upon a settlement agreement ("Agreement") entered between Plaintiff and defendants ABN Network, LLC dba Quick Health, Inc.; Shannon Kroemmelbein; Digital Bridge Network Corporation; Digital-Bridge, LLC; and Allan Redmond ("Defendants" together). (Simon Decl., Ex. A.) Plaintiff requests the court order Defendants to pay $2,181,613.32 to Plaintiff on the Agreement. In reviewing the Agreement, Plaintiff failed to comply with some key terms. First is that notice of any issues related to the Agreement must be both mailed overnight and emailed to Defendants. (Simon Decl. 4, Ex. A § 12.) While Plaintiff emailed and overnighted the demand to defense counsel, Plaintiff was notified by (now former) defense counsel he no longer represented any of the Defendants. (Simon Decl. ¶¶ 4-5, Exs. B-D.) Plaintiff then only emailed a copy of the demand to the email addresses provided by former defense counsel, but did not overnight the demand. (Simon Decl. ¶ 6.)

		As for the Motion itself, Plaintiff email served the individual defendants at their personal email addresses and email served the corporate entities at their former defense counsel's office. Emailing the defendants is improper as none of them have consented to receive email service, and notice to former counsel is improper as to the corporate entities as they are no longer represented by former defense counsel. Regarding the requested late fees of $480,000, the Agreement requires Plaintiff to send a written notice of payment default to Defendants if Plaintiff does not receive any specific installment payments. (Simon Decl., Ex. A § 2.) Defendants then have the opportunity to cure each default and avoid late penalties if they pay within the two day cure period. Here, Plaintiff did not provide any evidence of proper notice to Defendants of the defaults and the cure payment periods given the demand was served on former defense counsel and not on unrepresented Defendants themselves. As such, it does not appear the $480,000 can be added onto the judgment at this time due to lack of notice and lack of the ability to cure. As Plaintiff has not produced evidence it has complied with the requirements of the Agreement and service of the Motion, the Motion is denied without prejudice. Plaintiff to give notice.
2	Morales v. General Motors LLC	The motion for attorneys' fees, costs and expenses filed by plaintiff Dennis Morales (Plaintiff) is **GRANTED IN PART**. Plaintiff is awarded attorney fees, costs and expenses against defendant General Motors, LLC (Defendant) in the total amount of **$26,905.46**, comprised of $24,487.50 in fees plus $2,417.96 in costs and expenses. A court assessing a claim for fees under Civil Code section 1794, subdivision (d) is to use the lodestar as the start, to assess the reasonableness of the fee claim. (*Mikhaeilpoor v. BMW of North Americ*a (2020) 48 Cal.App.5th 240, 246-247.) The party claiming fees has the burden of showing that the fees incurred were reasonably necessary to the conduct of the litigation, and reasonable in amount. (Ibid; *Levy v. Toyota Motor Sales, U.S.A., Inc.* (1992) 4 Cal.App.4th 807, 816.) "In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice." (*Premier Medical Management Systems, Inc. v. California Ins. Guarantee Assn.* (2008) 163 Cal.App.4th 550, 564.) With regard to the determination of a reasonable hourly rate, the court may rely on its own knowledge and familiarity with the legal market as well as the experience, skill, and reputation of the attorney requesting fees, the difficulty or complexity of the litigation

to which that skill was applied, and declarations from other attorneys regarding prevailing fees in the community and rate determinations in other cases. (*Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 41.)

The Court finds counsels' hourly rates adequately supported and reasonable given counsels' experience and the nature of the dispute. (See Danna Decl., ¶¶ 30, 32-33 and Ex. J-R; see also, *Baer v. Tedder* (2025) 115 Cal.App.5th 1139, 1160-1161.) Defendant argues the hourly rates are unreasonable. However, Defendant failed to present any evidence to rebut the hourly rates requested.

The Court finds the requested multiplier not justified on the record presented and thus the request for a multiplier is denied.

The Court has reviewed the billing records submitted by Plaintiff's counsel and determines, with the exceptions noted below, the fees claimed are generally reasonable in light of the circumstances of this case. In the Reply, Plaintiff withdrew his request for $1,030 for anticipated time to oppose Defendant's motion to tax costs, as no motion to tax costs was filed. Thus, $1,030.00 shall be deducted from the fee award.

In the Opposition, Defendant argues the billing records show duplicative and unreasonable billing entries which should be stricken or reduced. In terms of duplicative billing, Defendant lists five examples, none of which clearly show duplicative billing. Rather, these entries appear to show either different tasks or continuation of the same task on different days. Plaintiff confirms as much in the Reply.

In terms of unreasonable billing entries, Defendant is correct that the flat fee entry for $3,900 for "all services rendered prior to the preparation of the Complaint" appears excessive. (See Ex. A, 7/24/25 entry.) As there is no breakdown of the specific hours spent on these tasks, the Court is unable to determine if the entirety of time spent on this entry is reasonable. The Court will allow $1,800 for this entry. This results in a reduction of $2,100.

The Court agrees with Defendant that 6 hours to review the opposition, prepare a reply and attend the hearing on this motion is excessive. The Court will allow 4 hours for these tasks at the $515 hourly rate, which results in a reduction of $1,030.

Defendant has not shown any other entries should be reduced as excessive or unreasonable.

Based on the foregoing, Plaintiff is awarded attorney's fees in the reduced sum of $24,487.50.

Plaintiff's unchallenged request for costs and expenses in the amount of $2,417.96 is **GRANTED**.

Counsel for Plaintiff is ordered to give notice of this ruling.

3	Salas vs. Capsule Manufacturing, Inc.	Solmer Law Group's ("Solmer") unopposed motion to be relieved as counsel for plaintiff Jennifer Salas ("Plaintiff") is DENIED without prejudice. Under California Rules of Court, Rule 3.1362(d), a motion to be relieved as counsel must be served on the client and on all other parties who have appeared in the case. Solmer has not filed a proof of service with the court at least five court days prior to the hearing. (Rule 3.1300(c).) As there is no evidence Plaintiff and the three defendants have been served, the motion is denied without prejudice to re-filing, properly serving all parties, and timely filing notice of service. Solmer to give notice of the ruling.
4	Creditors Adjustment Bureau, Inc. v. Societal CDMO, Inc.	O/C
5	Rancho Pacific Retail Partners LLC v. Hiccups Barista Inc.	Before the Court is a motion by defendants Hiccups Barista Inc. and Sky Hoang (Defendants) for leave to file an amended answer and a cross-complaint. As set forth below, the motion is **GRANTED**. Under Code of Civil Procedure section 473, the "court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading. (Code of Civ. Proc. § 473, subd. (a), § 576.) Courts are bound to apply a policy of great liberality in permitting amendments to the complaint "at any stage of the proceedings, up to and including trial," absent prejudice to the adverse party. (*Atkinson v. Elk Corp.* (2003) 109 Cal.App.4th 739, 761; *Husley v. Koehler* (1990) 218 Cal.App.3d 1150, 1159 [policy of liberality is particularly true for amendments to answers].) Here, the Court finds the motion for leave to amend substantially complies with the requirements of California Rules of Court, rule 3.1324, and no prejudice has been shown. (Declaration of William T. Carlsen ¶¶ 4-5, Ex. B.) The motion for leave to file an amended answer is therefore **GRANTED**. A cross-complaint is compulsory if the cause of action "arises out of the same transaction, occurrence, or series of transactions or occurrences as the cause of action which the plaintiff alleges in the complaint." (Code of Civ. Proc. § 426.10, subd. (c).) A party acting in good faith may apply to the court for leave to file a cross-complaint, at any time during the course of the action. (Code of Civ. Proc. § 426.50.) Leave to file compulsory cross-complaint is mandatory absent bad faith. (*Silver Organizations, Ltd. v. Frank* (1990) 217 Cal.App.3d 94, 98-99.) Here, the Court finds the proposed cross-complaint contains causes of action related to the causes of action pleaded by Plaintiff in the complaint and is thus, compulsory. (Carlsen Decl., Ex. B.) No bad faith has been shown. While some of these cross-claims are also alleged against a new party, leave to amend to file a permissive cross-complaint may be granted "in the interest of justice" at any time during the course of

		the action. (Code of Civ. Proc. § 428.50, subd. (c).) The cross-claims against the new party arise out of the same transaction, occurrence or series of transactions as set forth in the complaint and are proper. (Code of Civ. Proc. § 428.10, subd. (b).) In fact, the cross-claims against the new party are intertwined with the cross-claims against Plaintiff. Leave to amend will thus promote efficiency in having all the claims adjudicated in one action. For these reasons, the motion to file the cross-complaint is **GRANTED**. Defendants shall file forthwith the proposed first amended answer attached as Exhibit B to the Carlsen Declaration and the proposed cross-complaint attached as Exhibit 1 to the Supplemental Carlsen Declaration. Case Management Conference is **CONTINUED** to October 30, 2026, at 9:30 a.m. Defendants shall give notice of this ruling.
6	Itria Ventures LLC v. Johnsonvan, Inc.	The unopposed motion for summary adjudication filed by plaintiff Itria Ventures LLC (Plaintiff) is **GRANTED**. (Code Civ. Proc., § 437c.) Plaintiff moves for summary adjudication in its favor and against defendant Johnsonvan, Inc., dba V-Fast Rental (Johnsonvan) as to Plaintiff's third cause of action for breach of contract against Johnsonvan. The subject contract is governed by New York law. (See Smalbach Decl., ¶ 6 and Ex. A [Receivables Sale Agreement, § 15].) The elements of a breach of contract claim are: (1) existence of a contract; (2) plaintiff's performance or excuse for nonperformance; (3) defendant's breach; and (4) resulting damage to plaintiff. (*Kapoor v. AWI Wireless LLC*, 159 AD3d 1027, 1030 (NY App. 2d 2018); *Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821.) Plaintiff has presented evidence to show that on March 10, 2025, Plaintiff and Johnsonvan entered into a contract titled Receivables Sale Agreement (RSA) under the terms of which Plaintiff would pay Johnsonvan $85,000 for the purchase of $108,800 of Johnsonvan's accounts receivable. (UMF 1.) The RSA provided that Johnsonvan would remit 11.44% of its accounts receivable every week, which amounted to $2,472.73 each week, until Plaintiff had collected the amount sold. (UMF 2.) Plaintiff performed all of its obligations under the RSA, including paying the purchase price to Johnsonvan in March 2025. (UMF 1, 3.) Johnsonvan breached the RSA by failing to make the promised remittance on May 20, 2025. (UMF 5.) Plaintiff demanded that Johnsonvan remit the amounts due under the RSA, but Johnsonvan has refused to do so. (Smalbach Decl., ¶ 12.) As a result of Johnsonvan's breaches of the RSA, Plaintiff has suffered damages in the amount of $91,570.43, which includes $89,070.43 in uncollected accounts receivable under the RSA to date, plus the $2,500 in-house collection fee as set forth in Section 8 of the RSA. (UMF 5.)

		The evidence thus shows the contract, Plaintiff's performance, Johnsonvan's breach, and resulting damages. Accordingly, Plaintiff met its initial burden of establishing each element of its breach of contract claim. Johnsonvan failed to oppose the motion and thus failed to show there are any disputed issues of material fact to prevent summary adjudication. Based on the foregoing, the motion is **GRANTED**. Counsel for Plaintiff is to submit a proposed order and is ordered to give notice of this ruling.
7	Vicens vs. General Motors, LLC	Cont. to 6/13.
8	Cappuccini v. The Regents of the University of California	Before the Court is a demurrer filed by defendant The Regents of the University of California (Defendant) to the Second Amended Complaint (SAC) of plaintiff Fabio Cappuccini (Plaintiff). For the reasons set forth below, the demurrer is **SUSTAINED** with 20 days' leave to amend. A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (Code of Civ. Proc. § 430.10, subd. (e).) Defendant demurs to the second cause of action for wrongful termination. Because a public entity is liable for acts or omissions only as provided by statute, a common law claim for wrongful termination in violation of public policy does not lie against a public entity. (Gov. Code § 815, subd. (a); *Miklosy v. Regents of the University of California* (2008) 44 Cal.4th 876, 900-901; *Lloyd v. County of Los Angeles* (2009) 172 Cal.App.4th 320, 329; *McAllister v. Los Angeles Unified School Dist.* (2013) 216 Cal.App.4th 1198, 1219.) Plaintiff argues the wrongful termination claim is grounded in the statutory policy of FEHA, which expressly applies to public entities. Plaintiff's argument is misplaced. It is true public entities are covered "employers" subject to FEHA. (Gov. Code § 12926, subd. (d).) But Plaintiff does not allege any statutory claim pursuant to FEHA. The fact that Plaintiff's wrongful termination is tethered to the public policy under FEHA does not change the common law claim to a statutory claim. Plaintiff next argues that he alleges a viable claim for breach of contract. Preliminarily, the second cause of action is specifically captioned "wrongful termination" not breach of contract. (SAC, p. 3.) Plaintiff also fails to plead the elements of a breach of contract claim, including the contractual terms allegedly breached and Plaintiff's performance or excuse for performance. (*Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821 [elements]; *Construction Protective Services, Inc. v. TIG Specialty Ins. Co.* (2002) 29 Cal.4th 189, 198-199 [a written contract may be pleaded verbatim, by its legal intendment and effect].)

		The demurrer is therefore **SUSTAINED** with 20 days leave to amend. Case Management Conference is **CONTINUED** to October 30, 2026, at 9:30 a.m. Counsel for Defendant shall provide notice of this ruling.
9	Hallett v. Waterfront Resort Properties, LP et al	Before the Court at present are: (1) the "Motion For Order Requiring Vexatious Litigant And Pro-Per Plaintiff Darrell Hallett To Furnish Security Pursuant To CCP §391.3," filed on 12/23/25 by defendants Waterfront Resort Properties LP, De Anza Corporation, Newport Dunes Resort and Marina Partnership, Dunes Resort LP, Dunes Resort LLC, Terra Vista Management Inc. and Phillip Ravenna ("Defendants") ("<u>Motion 1</u>" below); and (2) the Motion for Reconsideration of Order Imposing Monetary Sanctions, filed on 3/20/26 by Plaintiff Darrell Hallett ("Plaintiff") ("<u>Motion 2</u>" below). <u>Motion 1 is **GRANTED IN PART**.</u> As a preliminary matter, there are numerous defects in the papers presented by Plaintiff in opposition to the motion. Plaintiff is reminded that future compliance with all filing deadlines, page limits, and all other filing requirements is expected, and that future violations may result in a refusal to consider such improper submissions. On the merits, the Motion fails to show that Plaintiff has no reasonable likelihood of prevailing on any of the causes of action that he has presented here. As Defendants seek an order, under C.C.P. § 391.1, requiring Plaintiff to furnish security, they must thus show that Plaintiff, who has already been deemed a vexatious litigant, has no "reasonable probability" of prevailing in this action. The court may weigh the evidence presented on the motion. (*Moran v. Murtaugh Miller Meyer & Nelson, LLP* (2007) 40 Cal.4th 780, 782.) Plaintiff's Third Cause of Action asserts a claim for violation of Civil Code §1671. Plaintiff asserts therein that Defendants charged him $5,325 for a total of 71 daily late fees, in violation of Civil Code §1671. (Complaint, ¶¶ 79 – 110, 202-203.) Plaintiff also asserts that Defendants "cancelled" his future reservations due to nonpayment, and offered to refund $1,052.78 in late fees only if he agree to certain conditions. (Complaint ¶¶ 175-179.) Defendants failed to fully address those assertions, arguing instead that they offered to refund "the only late fees actually and inadvertently collected from him in the amount of $302.87." (ROA 141, p. 11; Ravenna Decl., ¶¶ 8-10.) But Defendants failed to provide any evidence to show what late fees were assessed when, which were actually paid, and how they calculated the refund. Nor have they presented authority to establish that merely refunding the collected portion of an allegedly unlawful fee would suffice to avoid any liability under §1671, and for any related claim based thereon.

		Plaintiff’s Opposition asserts, without offering any actual testimony or other evidence to support the claim, that he actually paid $600 in late fees. But even without any admissible evidence from Plaintiff to refute Defendants’ claims as to the amount collected, Defendants have failed to meet their burden for the Third Cause of Action. Defendants have thus failed to meet their burden here, as to the Defendants *collectively*. However, Defendants *have* shown that there does not appear to be a “reasonable probability” that Plaintiff will prevail in this action as to Defendant Phillip Ravenna or Defendant De Anza Corporation. Merely asserting in response that De Anza signed a sublease for Waterfront Resort Properties LP, or that Ravenna worked as the property manager for Terra Vista Management Inc., does not suffice. Nor does the evidence cited in ROA 348, at ¶ 31, suffice to show any basis for the claims as to those defendants. The Motion is therefore **GRANTED IN PART**, as to Defendant Phillip Ravenna or Defendant De Anza Corporation. However, the Motion has failed to demonstrate that $100,000 is justified as the security sum for those two defendants. The Court instead finds that the security sum shall be set at $50,000. Motion 2 is **DENIED**. Plaintiff has failed to show either that reconsideration under C.C.P. § 1008 is warranted here, or that the previously determined sanctions award should not remain. Counsel for Defendants to give notice of these rulings.
10	Gonzalez v. Aten Technology, Inc.	O/C
11	Rojas v. Alamirad Dental Corp	Before the Court is a motion to transfer venue and a motion to disqualify counsel filed by defendant Farzan Alamirad (Defendant) against plaintiff Elizabeth Rojas (Plaintiff). For the reasons set forth below, both motions are DENIED. Motion to Transfer Venue: Even if filed in a “proper” county, on appropriate motion, the court has discretionary power to transfer the case to any other county “[w]hen the convenience of witnesses and the ends of justice would be promoted by the change.” (Code of Civ. Proc. § 397, subd. (c); *Rycz v. Sup. Ct. (McGarry)* (2022) 81 Cal.App.5th 824, 836.) Defendant has failed to identify any witnesses who reside in Los Angeles County and only makes generalized assertions that unnamed “percipient witnesses” reside in Los Angeles County. Defendant’s main concern appears to be his own inconvenience in having to litigate in Orange County. (Alamirad Decl. ¶¶ 6-7.) However, it is only the convenience of the nonparty witnesses that is important. Absent extraordinary circumstances, the parties’ conveniences are not considered – even if they are to testify. (*Wrin v. Ohlandt* (1931) 213 Cal.158, 160; *Simonian v. Simonian* (1950)

97 Cal.App.2d 68, 69 [the conveniences of a party are limited to cases where a party is extremely ill or feeble so that travel to a distant county would endanger the party's health].) Defendant has failed to show the convenience of nonparty witnesses and the ends of justice would be promoted by the venue change. The motion to transfer venue is therefore DENIED.

Motion to Disqualify:

Civil judges have the power to order disqualification of counsel when necessary for the furtherance of justice. (*Willian H. Raley Co. v. Superior Court* (1983) 149 Cal.App.3d 1042, 1048; *People ex rel. Dept. of Corporations v. SpeeDee Oil Change Systems, Inc.* (1999) 20 Cal.4th 1135, 1145.) In exercising that power, the court must weigh "the combined effect of a party's right to counsel of choice, an attorney's interest in representing a client, the financial burden on a client of replacing disqualified counsel and any tactical abuse underlying a disqualification proceeding against the fundamental principle that the fair resolution of disputes within our adversary system requires vigorous representation of parties by independent counsel unencumbered by conflicts of interest." (*Willian H. Raley Co. v. Superior Court, supra,* 149 Cal.App.3d at 1048; *SpeeDee Oil*, *supra*, 20 Cal.4th at 1145-46 ["The paramount concern must be to preserve public trust in the scrupulous administration of justice and the integrity of the bar"].)

As such, motions to disqualify counsel are not granted on a regular basis and will not be granted when only a hypothetical conflict exists. (*Fox Searchlight Pictures, Inc. v. Paladino* (2001) 89 Cal.App.4th 294, 302.) "A conflict arises when the circumstances of a particular case present a substantial risk that the lawyer's representation of the client would be materially and adversely affected by the lawyer's own interest or by the lawyer's duties to another current client, a former client, or a third person. (*In re Jasmine S.* (2007) 153 Cal.App.4th 835, 844 [*citing* Rest. 3d Law Governing Lawyers, § 121].) If competent evidence does not establish a conflict, the attorney will not be disqualified. (*Ibid*.) Here, Defendant contends he disclosed confidential business and employee-related documents to Arian Eghbali, believed to be a family member of opposing counsel, for the purpose of obtaining "professional assistance" and that the disclosed documents are directly related to the subject matter of this litigation.

"Mere exposure to the confidences of an adversary does not, standing alone, warrant disqualification . . . Such a rule would nullify a party's right to representation by chosen counsel any time inadvertence or devious design put an adversary's confidences in an attorney's mailbox." (*In re Complex Asbestos Litigation* (1991) 232 Cal.App.3d 572, 589.)

"The drastic remedy of disqualification of counsel is appropriate only where the attorney improperly or inadvertently received information protected by the opposing party's attorney-client privilege, the information is material to the proceeding, *and* its use would

		prejudice the opposing party in the proceeding." (*Sundholm v. Hollywood Foreign Press Assn.* (2024) 99 Cal.App.5th 1330, 1334.) Defendant failed to present any evidence that Plaintiff's counsel received any confidential information (let alone attorney-client privileged information) that would prejudice Defendant in this litigation. Defendant fails to explain in what capacity Arian Eghbali provided "professional assistance" but notably does not contend it was legal assistance or representation. Defendant also does not explain how employee payroll information and internal operational information could be used adversely against him in this litigation. Moreover, Defendant relies entirely on speculation. There is no evidence Plaintiff's counsel even received any confidential information. Defendant has not shown grounds for disqualification. The motion to disqualify is therefore DENIED. Counsel for Plaintiff shall give notice of this ruling.
12	Karakalos v. Colonial Family Funeral Care etc. et al.	Before the Court at present are the Demurrer and Motion to Strike filed on 3/23/26 by Defendants Colonial Family Funeral Care dba Chapman Funeral Homes and Mary J. Harmon, ("Defendants"), as to the Second Amended Complaint ("SAC") filed on 2/17/26 by Plaintiff Mary Karakalos ("Plaintiff"). **<u>The Demurrer</u>**: The Demurrer is directed to the Fourth, Fifth, Sixth, Seventh and Eighth Causes of Action (each a "COA") in the SAC. The Demurrer as to COA 4 is **OVERRULED**; the Demurrer as to COAs 5-8 is **SUSTAINED, without leave to amend**. COA 4 now attempts to assert a claim for "Interference With Right to Possession and Control of Human Remains," which alleges intentional conduct and is thus distinct from the claims in COAs 1 and 2. The Demurrer as to COA 4 is therefore **OVERRULED**. However, the additional COAs asserted as COAs 5-8, which were added without leave to do so, appear to effectively duplicate COA 4. None of those COAs state a cognizable claim distinct from COA 4. The Motion is therefore **GRANTED** as to COAs 5-8, without further leave to amend. **<u>The Motion to Strike</u>**: In light of the ruling on the Demurrer, the Motion to Strike as to COAs 5-8 is **MOOT**. The Motion is otherwise **DENIED**. The allegations presented, in promising to provide but then intentionally failing to actually provide the remains at issue to Plaintiff in a timely manner, are sufficient to support the request for punitive damages in ¶ 42 and ¶ 51, for pleading purposes. Defendants are to file their Answer to the SAC within 10 days Case Management Conference is **CONTINUED** to October 30, 2026, at 9:30 a.m. Plaintiff to give notice of these rulings.

13	Farrow v. Goulis	The motion to stay proceedings filed by defendants Kelly Goulis, Chander Burgos, and Rohit Chauhan (collectively, Defendants) is **GRANTED**. Defendants move to stay this proceeding pending resolution of the related probate matter, *In the Matter of the Elizabeth Thermos 1998 Trust, as Amended and Restated*, Los Angeles Superior Court Case No. 22STPB12506, involving plaintiff Maria Farrow, as Trustee of the Elizabeth Thermos 1998 Trust dated May 21, 1998, as amended and restated (Plaintiff) and defendant Kelly Goulis. "Trial courts generally have the inherent power to stay proceedings in the interests of justice and to promote judicial efficiency." (*Freiberg v. City of Mission Viejo* (1995) 33 Cal.App.4th 1484, 1489; *see also* Code Civ. Proc., § 128, subd. (a) ["Every court shall have the power . . . (3) [t]o provide for the orderly conduct of proceedings before it . . . [and] (8) [t]o amend and control its process and orders so as to make them conform to law and justice."].) "When an action is brought in a court of this state involving the same parties and the same subject matter as an action already pending in a court of another jurisdiction, a stay of the California proceedings is not a matter of right, but within the sound discretion of the trial court. In exercising its discretion the court should consider the importance of discouraging multiple litigation designed solely to harass an adverse party, and of avoiding unseemly conflicts with the courts of other jurisdictions. It should also consider whether the rights of the parties can best be determined by the court of the other jurisdiction because of the nature of the subject matter, the availability of witnesses, or the stage to which the proceedings in the other court have already advanced." (*Farmland Irr. Co. v. Dopplmaier* (1957) 48 Cal.2d 208, 215.) The Court finds a stay of the instant action pending resolution of the probate proceeding warranted to avoid inconsistent rulings and to promote judicial efficiency. Both parties agree that the validity of the trust amendment that names Plaintiff as trustee of the Elizabeth Thermos 1998 Trust dated May 21, 1998, as amended and restated (Thermos Trust) is currently being litigated in the probate matter. As Defendants argue, a determination by the probate court that said trust amendment is invalid would nullify any actions taken by Plaintiff as purported trustee (including electing herself as director of Urethane Products Corporation (UPC) based on her standing as trustee of the Thermos Trust) and could render the instant action moot. If this Court proceeds with the instant action and makes a finding as to the validity of UPC director elections, such a finding could potentially conflict with a determination of trust validity made by the probate court. Moreover, as Defendants argue, in adjudicating the instant action, this Court would necessarily be confirming Plaintiff's authority as trustee, which determination could potentially conflict with findings in the probate court. Although Plaintiff is correct that the probate and civil actions will decide different issues, both cases involve the same underlying

		subject matter – i.e., Plaintiff’s authority as trustee of the Thermos Trust. As that issue is already being litigated in the probate court, a stay of the current proceeding pending resolution of the probate case is warranted to avoid conflicting rulings and duplicative litigation. Furthermore, the issue of Plaintiff’s authority as trustee is best determined by the probate court as that court has exclusive jurisdiction of proceedings concerning the internal affairs of trusts. (See Probate Code, § 17000(a); *Harnedy v. Whitty* (2003) 110 Cal.App.4th 1333, 1345 [“Internal trust affairs, for example, include modification of the terms of the trust, changes in a designated successor trustee, other deviation from trust provisions, authority over the trustee’s acts, or the administration of the trust's financial arrangements.”].) Plaintiff argues repeatedly that her powers as trustee have not been suspended and she thus has standing and the authority to proceed with this section 709 action. But this misses the point. The issue is not whether Plaintiff currently has standing to proceed with this action, but whether this Court should exercise its discretion to stay the action pending resolution of the probate case. For the reasons discussed above, the Court will do so. Plaintiff has not adequately shown or offered sufficient evidence to support the contention that UPC’s operations will be harmed by a stay. Accordingly, the motion is **GRANTED**. A Status Conference re: Status of Probate Matter is scheduled for October 16, 2026, at 9:30 a.m. in Dept. N17. The parties’ requests for judicial notice are **GRANTED** as to the existence of and legal effects of the records, but not as to the truth of any disputed facts asserted therein. (Ev. Code §452(d); *Fontenot v. Wells Fargo Bank, NA* (2011) 198 Cal.App.4th 256, 264; *Arce v. Kaiser Foundation Health Plan, Inc.* (2010) 181 Cal.App.4th 471, 482.) The parties’ evidentiary objections are **OVERRULED**. Defendants shall give notice.
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